

		action that the express contract is void (because it was procured by fraud or is unenforceable or ineffective for some reason) or was rescinded. (<i>Rutherford Holdings, LLC v. Plaza Del Rey</i> (2014) 223 Cal.App.4th 221, 231.) Under the law of restitution, “an individual is required to make restitution if he or she is unjustly enriched at the expense of another. A person is enriched if the person receives a benefit at another’s expense. Benefit means any type of advantage.... The person receiving the benefit is required to make restitution only if the circumstances are such that, as between the two individuals, it is unjust for the person to retain it.” (<i>First Nationwide Savings v. Perry</i> (1992) 11 Cal.App.4th 1657, 1662-1663.) Plaintiffs have not shown Illinois’ interest in applying Illinois law under the circumstances of this case or how Illinois’ interest may be impaired if Illinois law was not applied. The Court declines to consider this cause of action under Illinois law. Even if the Court considered this a claim for restitution based on unjust enrichment, Plaintiffs have not alleged sufficient facts to state this cause of action. Accordingly, the demurrer is sustained with 15 days leave to amend. Defendant shall give notice.
4.	2025-1491645 Salazar vs. General Motors, LLC	The Court sustains Defendant General Motors LLC’s Demurrer to the fourth and fifth causes of action for breach of the implied warranty and fraud, respectively, in Plaintiff David Salazar’s First Amended Complaint (FAC). Plaintiff has 15 days leave to amend the fraud claim only. <u>Facts</u> The FAC alleges that on February 17, 2019, Plaintiff entered into a warranty contract with Defendant GM regarding a 2019 Chevrolet Silverado 1500 (i.e. “Subject Vehicle.”) (FAC, ¶ 6.) The Plaintiff “purchased the Vehicle from Defendant GM’s authorized retail dealership Chevrolet of Montebello” (<i>Id.</i> at ¶ 8.) The FAC alleges that “Plaintiff discovered Defendant’s wrongful conduct alleged herein shortly before the filing of the complaint, as the Vehicle continued to exhibit symptoms of defects following GM’s unsuccessful attempts to repair them. However, Defendant failed to provide restitution pursuant to the Song-Beverly Consumer Warranty Act.” (<i>Id.</i> at ¶ 31.) The Complaint was filed on 6/23/25. <u>4th Cause of Action for Breach of Implied Warranty</u> The four-year statute of limitations articulated in Commercial Code section 2725 applies to claims brought pursuant to the Song-Beverly

Act. (*Krieger v. Nick Alexander Imports, Inc.* (1991) 234 Cal.App.3d 205, 214-215.) “A breach of warranty occurs when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered” (Com. Code, § 2725, subd. (2).)

Similarly, “[t]he statute of limitations for breaches of the implied warranty of merchantability is four years.” (*Montoya v. Ford Motor Co.* (2020) 46 Cal.App.5th 493, 494.)

Per the FAC, Plaintiff entered into the relevant warranty contract on **2/17/19**. (FAC, ¶6.) Although not explicitly stated, the reasonable implication is that the vehicle was delivered to Plaintiff, on that same date. On demurrer, the Court “assume[s] the truth of all properly pleaded facts, as well as all facts that may be implied or reasonably inferred from those expressly alleged....” (*Sonoma Luxury Resort LLC v. California Regional Water Quality Control Bd.* (2023) 96 Cal.App.5th 935, 940.) The instant action was not commenced until **6/23/25**, over 4 years after delivery of the vehicle.

But Plaintiff argues that delayed discovery is permitted and, in that vein, alleges that “Plaintiff discovered Defendant's wrongful conduct alleged herein shortly before the filing of the complaint, as the Vehicle continued to exhibit symptoms of defects following GM's unsuccessful attempts to repair them.” (FAC, ¶31.)

Under section 2725, the general limitations rule for a breach of warranty cause of action is four years from the date the goods are delivered (regardless of the date the buyer discovers the breach), unless the “warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance”; If the exception applies, the accrual date is the time the breach is or should have been discovered. (*Cardinal Health 301, Inc. v. Tyco Electronics Corp.* (2008) 169 Cal. App. 4th 116, 129, electrical connector manufacturer’s warranty that connections would work for 50,000 cycles did not fall within the future performance exception to limitation period for claims alleging breach of warranty, and thus, limitations period began to run when tender of the goods was made; the promise about the mechanical life of the spring probe connectors did not specify a date or time in the future, nor did the 50,000 cycle warranty pertain to a time period that could be determined by reference to an external source quoting Cal. Com. Code, § 2725(2).)

The *Cardinal Health* court explained that, although the scope of the “future performance” exception has been the subject of numerous,

and sometimes conflicting, decisions throughout the country, "the majority view is that the exception must be narrowly construed, and that it applies only when the seller has expressly agreed to warrant its product for a specific and defined period of time." (*Cardinal Health 301, Inc., supra*, at p. 130.)

But recognizing that in order to prove a breach of the implied warranty, the purchaser is required to show that the defect existed at the time the product was sold or delivered, the court in *Mexia v. Rinker Boat Co., Inc., infra*, opined that, "[i]n effect, therefore, there is no 'duration' of the implied warranty under the Uniform Commercial Code in any meaningful sense; the product is either merchantable or not (and a breach of the implied warranty occurs or not) only at the time of delivery." (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1304, citing Cal. Com. Code, § 2725(2)).

Here, Plaintiff has alleged that the alleged defects existed when the car was delivered and manifested during the express warranty period. (FAC, ¶¶18, 72-73.) Recognizing that in order to prove a breach of the implied warranty, the purchaser is required to show that the defect existed at the time the product was sold or delivered, the court in *Mexia v. Rinker Boat Co., Inc.*, opined that, "[i]n effect, therefore, there is no 'duration' of the implied warranty under the Uniform Commercial Code in any meaningful sense; the product is either merchantable or not (and a breach of the implied warranty occurs or not) only at the time of delivery." (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal. App. 4th 1297, 1304, (citing 1 White & Summers, Uniform Commercial Code (5th ed.2006), § 9-12, pp. 657-658.)

Thus, based on the allegations, it appears that the statute of limitations has run. The Demurrer is therefore sustained without leave to amend.

Fifth Cause of Action for Fraudulent Inducement/Concealment

The limitations period for Plaintiffs' fraud cause of action is three years. (Code Civ. Proc., § 338, subdivision (d).) "The cause of action in that case is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake." (Ibid.)

"California law recognizes a general, rebuttable presumption, that plaintiffs have 'knowledge of the wrongful cause of an injury.' " (*Grisham v. Philip Morris U.S.A., Inc.* (2007) 40 Cal.4th 623, 638 (Grisham).) The delayed discovery rule rebuts that presumption and

tolls the statute of limitations. (Ibid.; See also *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 803.)

“In order to rely on the discovery rule for delayed accrual of a cause of action, ‘[a] plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule **must specifically plead facts** to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence.’” (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 808.)

Likewise, “[w]hen a plaintiff relies on a theory of fraudulent concealment, delayed accrual, equitable tolling, or estoppel to save a cause of action that otherwise appears on its face to be time-barred, he or she must **specifically plead facts** which, if proved, would support the theory.” (*Mills v. Forestex Co.* (2003) 108 Cal.App.4th 625, 641.) “A plaintiff who fails to sufficiently plead such facts normally should be permitted to amend his or her complaint to do so.” (Ibid.)

Per the FAC, Plaintiff entered into the relevant warranty contract on **2/17/19**. (FAC, ¶6.) The instant action was not commenced until **6/23/25**, over 3 years later. While Plaintiff attempts to allege delayed discovery, the FAC is devoid of the required facts. In order for the statute of limitations to be tolled for delayed discovery in a fraudulent concealment action, the “complaint must allege (1) when the fraud was discovered; (2) the circumstances under which it was discovered; and (3) that the plaintiff was not at fault for failing to discover it. . .” (*Community Cause v. Boatwright* (1981) 124 Cal.App.3d 888, 900.)

Further, the Court finds that the fraud claim is not pled with specificity. “[T]he elements of an action for fraud and deceit based on a concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (*Boschma v. Home Loan Center, Inc.* (2011) 198 Cal.App.4th 230, 248.)

Fraud, including concealment, must be pled with specificity. (*Linear Technology Corp. v. Applied Materials, Inc.* (2007) 152 Cal.App.4th 115, 132.) General and conclusory allegations do not suffice. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.) The policy of liberal

		construction of pleadings will not ordinarily be invoked to sustain a pleading defective in any material respect for allegations of fraud. (<i>Id.</i>) However, less specificity is required of fraud claims when a defendant must necessarily have more information or knowledge concerning the facts of the controversy than a plaintiff. (<i>Alfaro v. Community Housing System & Planning Assn., Inc.</i> (2009) 171 Cal.App.4th 1356, 1384.) Thus, the Demurrer to the fifth cause of action for fraud is sustained with leave to amend. Defendant is ordered to serve notice.
5.	2025-1517586 Je Beaute, Inc. vs. Guo	The Court erroneously referred to this matter as having been continued from 5/13 for “lack of an interpreter.” But subsequent to posting, the Court was presented with supplemental briefing (ROAs 177 and 179) which refreshed the Court’s recollection as to the reason it continued the original motion to expunge lis pendens. Based on the supplemental briefing, the Court is satisfied both that the matter concerns real property, and as to the validity of the claim. Accordingly, the motion to expunge lis pendens is DENIED.
6.	2022-1262809 Haddad vs. Ismail	The Court grants Defendants Wissam Ismail and Omer Ismail’s Motion to vacate the 7/20/23 default and the 10/26/23 Judgment entered against them on Plaintiff Wasfi Haddad’s Complaint for breach of contract. <u>Evidentiary Objections</u> The Court overrules Defendants’ objection nos. 1-5. <u>Legal Standard</u> Without valid service of summons, the court never acquires jurisdiction over defendant. Hence, the statutory ground for the motion to quash is that the court lacks jurisdiction over the defendant. (CCP § 418.10(a)(1); <i>see Kremerman v. White</i> (2021) 71 Cal.App.5th 358, 371—”[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction. Thus, a default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute is void” (internal quotes and citation omitted).) “When a defendant challenges the court’s personal jurisdiction on the ground of improper service of process the burden is on the plaintiff to prove ... the facts requisite to an effective service.” (<i>Summers v. McClanahan</i> (2006) 140 CA4th 403, 413; <i>see Lebel v. Mai</i> (2012) 210 Cal.App.4th 1154, 1163.)